High Court Practice

ETTIENNE BARNARD ATTORNEYS

1

High Court

- Applications
- Actions

ETTIENNE BARNARD ATTORNEYS

2



ETTIENNE BARNARD ATTORNEYS

3



ETTIENNE BARNARD ATTORNEYS

4

DRESS CODE

- PRACTICE MANUAL OF THE LABOUR COURT OF SOUTH AFRICA – 1 April 2013.
- Proper dress for attorneys comprises:
- A black attorney's gown
- A white shirt or blouse closed at the neck.
- A white lace jabot.
- Dark pants or skirt.
- Black or dark closed shoes.

ETTIENNE BARNARD ATTORNEYS

5

COURT ETHICS

- My Lord / Lady
- Appeal Court – The court or justice
- In motion court wait until next matter is called before leaving
- Second last one waits till court adjourns
- Do not see judge alone if opposed
- Remember to introduce

ETTIENNE BARNARD ATTORNEYS

6

Advocates

- Summary of matter
- NEVER GIVE ORIGINALS
- Make sure have copies
- Confirm fees
- Give time limit
- You are still responsible

ETTIENNE BARNARD ATTORNEYS

7

New Act

- Superior Court Act 10 of 2013
- Promulgated 23 August 2013
- Constitution Seventeenth Amendment Act

ETTIENNE BARNARD ATTORNEYS

8

FICA

- What information need from a natural Person?
- Close Corporation
- Companies
- Partnerships
- Trusts

ETTIENNE BARNARD ATTORNEYS

9

Letter of Demand

- The same requirements for a letter of demand in the magistrate's court is applicable to the High Court.

ETTIENNE BARNARD ATTORNEYS

10

Cause of Action

- Contract
- Delict
- Other causes
  - Maintenance
  - Enrichment
- Legal fact giving rise to an obligation, which results in liability
- Cause action must be complete
  - Letter of demand

ETTIENNE BARNARD ATTORNEYS

11

Locus standi

- Capacity to act as litigant i.e. the capacity to sue or be sued.
- Also must have direct and substantial interest in the right which is the subject matter of litigation.
- Constitution does create opportunity for group actions.

ETTIENNE BARNARD ATTORNEYS

12

Exceptions

- Minors
  - 18 years
  - Guardian represents child
  - Curator ad Litem
  - ***Legal Aid Board in re Four Children*** (512/10) [2011] ZASCA 39 (29 March 2011)
    - Children brought application in a quo
    - Did not have standing as minors
    - Curator ad litem
    - Common for legal practioners to be appointed and then conduct legal action themselves
    - Legal Aid Board can be appointed as curator ad litem for children it represents

ETTIENNE BARNARD ATTORNEYS

13

Exceptions

- Curatorship
  - Curator bonis
    - Administer person's property and affairs in general
  - Curator ad litem
    - Represent a person whether major or minor in civil litigation
  - Mentally disordered person
  - Interdicted prodigal (verkwister)
    - Limited legal capacity
  - Unrehabilitated insolvent
    - Diminished locus standi

ETTIENNE BARNARD ATTORNEYS

14

Exceptions

- Married Person
  - MICP
    - Must have written consent from other spouse
    - Except if
      - Between spouses
      - Profession
      - Damages for delict

ETTIENNE BARNARD ATTORNEYS

15

Exceptions

- Other Natural Person who cannot sue or be sued
  - Judges of the High Court
    - Consent of Court
  - Members and Officers of Parliament
    - Can only be sued in Cape Town
    - Can sue anywhere else
  - Diplomats
    - Immune civil and criminal proceedings
  - Fugitives from Justice
    - Can not sue
    - Can be sued
  - Alien Enemies
    - Can not sue while living in enemy country
    - Can be sued

ETTIENNE BARNARD ATTORNEYS

16

Jurisdiction

- Legal competence of a court to hear a specific matter and to grant an order in that matter.
- If Mag Court jurisdiction then may only get Mag Court costs
- Inherent Jurisdiction
- S50 Mag Court only available for defendant
  - Oosthuizen v Road Accident Fund 2011 (6) SA 3 (SCA)

ETTIENNE BARNARD ATTORNEYS

17

Jurisdiction – Divisions

Seat of Court	Name of High Court
Bloemfontein	Free State Division, Bloem
Cape Town	Western Cape Division, CT
Nelspruit	Mpumalanga Division, Nelspruit
Grahamstown	Eastern Cape Division, Graham
PMB	KwaZulu-Natal Division, PMB
Pretoria	Gauteng Division, Pta
Polokwane	Limpopo Division, Polokwane
Kimberly	Northern Cape Division, Kim
Mahikeng	North West Division, Mahikeng

ETTIENNE BARNARD ATTORNEYS

18

Jurisdiction – Local Seats

Seat of Court	Name of High Court
Bhisho	Eastern Cape Local Division
Mthatha	Eastern Cape Local Division
Port Elizabeth	Eastern Cape Local Division
Durban	KwaZulu – Natal Local Division
Thohoyandou	Limpopo Local Division
Johannesburg	Gauteng Local Division

ETTIENNE BARNARD

19

Description of Court

"IN THE HIGH COURT OF SOUTH AFRICA
(WESTERN CAPE DIVISION, CAPE TOWN)"

"IN DIE HOOGGEREGSHOF VAN SUID-AFRIKA
(WES-KAAPSE AFDELING, KAAPSTAD)"

ETTIENNE BARNARD

20

Jurisdiction – Sec 21

- All persons residing or being in its area
- All causes arising within the area
- All matters it may take cognisance
- Domicilium address not enough to establish jurisdiction
  - Geyser v Nedbank 2006 (4) SA 544

ETTIENNE BARNARD

21

Jurisdiction – Sec 21

- Sec 21 – attach property to confirm jurisdiction
- Sec 19 old act
  - Found jurisdiction
    - But plaintiff must reside in court's jurisdiction
  - Confirming jurisdiction
    - but cause of action must arise in the jurisdiction
- Except if defendant resident in South Africa (Sec 28)

ETTIENNE BARNARD

22

Action Procedure

- Pleading stage
- Preparation for trail
- Trial itself

ETTIENNE BARNARD

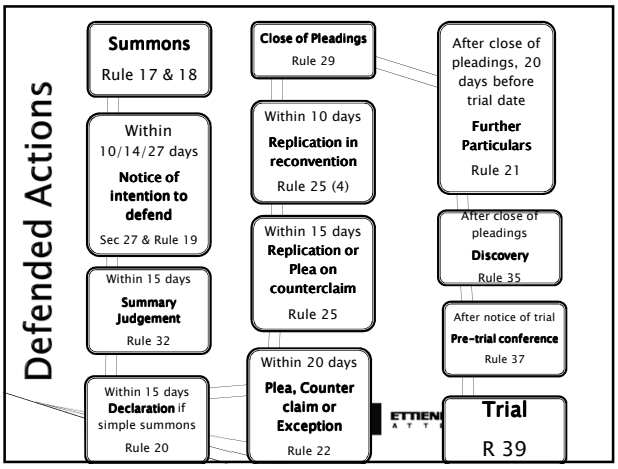
23

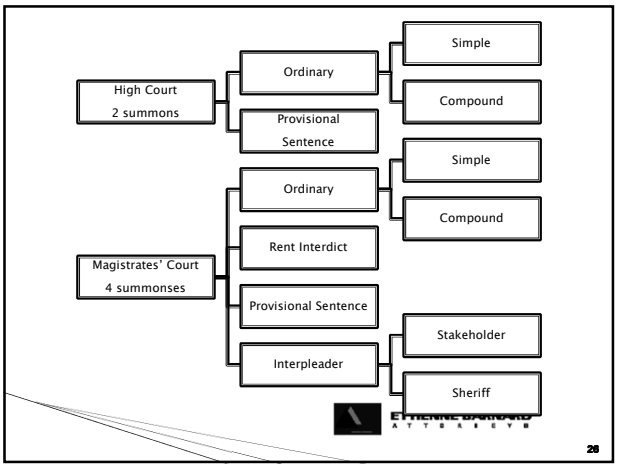
Pleadings

- Plaintiff's summons
- Defendant's Plea
- Defendant's Counterclaim
- Plaintiff's Reply
- Plaintiff's plea to defendant's counterclaim
- Request for further particulars
- Answer to the Request for further particulars
- Exception ????

ETTIENNE BARNARD

24





ORDINARY SUMMONS

(Rule 17 and 18)

SIMPLE SUMMONS	COMBINED SUMMONS
• Debt / liquidated demand • Form 9 • Rule 17(2)(b) **"shall"**, choose Simple Summons • Mag Court "**may**"	• All others • Form 10

ETTIENNE BARNARD ATTORNEYS

27

CAUSE OF ACTION IN A SIMPLE SUMMONS

- Payment of a debt
- Delivery
- Transfer
- Eviction
- Cancellation of a contract
- NOT
  - Divorce
  - Declaratory order

ETTIENNE BARNARD ATTORNEYS

28

Summons

- Causa must contain all factual allegations necessary to found plaintiff's claim
- If allegation not made in summons it cannot be considered during trial
- All legal requirements and make necessary allegations

ETTIENNE BARNARD ATTORNEYS

29

Summons

- Physical address within 15 km from court
- Also email and fax
- Signed by attorney or plaintiff
- If combined then also by advocate or attorney with right of appearance in High Court
  - Zeda Car Leasing (Pty) Ltd t/a Avis Fleet Services v Pillay 2007 (3) SA 89 D and CLD
    - Only in Division where admitted

ETTIENNE BARNARD ATTORNEYS

30

Summons

- LIBERTY GROUP LTD v SINGH AND ANOTHER 2012 (5) SA 526 (KZD)
- an attorney with the right of appearance in the high court, confers on that attorney the right to appear before, and carry out the functions of an advocate in, all divisions of the high court.
- The certificate also entitles the attorney to sign pleadings, *qua advocate*, in all divisions of the high court.
- However, an attorney's right to sign pleadings *qua attorney* is limited to the division in which he or she was admitted or enrolled.

ETTIENNE BARNARD ATTORNEYS

31

Summons

Description

- Name or initials and surname of Plaintiff and Defendant
- Address of residence or work
- Occupation if known
- Sex
- Female – marital status
- If plaintiff sues in representative capacity, state the capacity
- if action based on contract – state oral or written, when, where and by whom concluded and copy attached

ETTIENNE BARNARD ATTORNEYS

32

Summons

Standard Bank of SA Ltd v Saunderson & others 2006(2) SA 264 (SCA)
Elsie Gundwana v Steko Development CC and others 2011(3) SA 608 (CC)

"The defendant's attention is drawn to section 26(1) of the Constitution of the Republic of South Africa which accords to everyone the right to have access to adequate housing. Should the defendant claim that the order for eviction will infringe that right it is incumbent on the defendant to place information supporting that claim before the Court".

ETTIENNE BARNARD ATTORNEYS

33

Summons

- The plaintiff may indicate in a summons whether it is prepared to accept service of all subsequent documents and notices in the suit through any manner other than the physical address or postal address and, if so, shall state such preferred manner of service.

ETTIENNE BARNARD ATTORNEYS

34

Summons

- If an action is defended the defendant may, at the written request of the plaintiff, deliver a consent in writing to the exchange or service by both parties of subsequent documents and notices in the suit by way of facsimile or electronic mail.

ETTIENNE BARNARD ATTORNEYS

35

Summons

- If the defendant refuses or fails to deliver the consent in writing the court may, on application by the plaintiff, grant such consent, on such terms as to costs and otherwise as may be just and appropriate in the circumstances.

ETTIENNE BARNARD ATTORNEYS

36

PRACTICE NOTICE – All documents

- Shall be typed and printed in black ink
- on white paper of A4 size
- in double spacing on one side of the paper only
- with a font size not less than 12 point;
- shall have a margin of at least 35mm,
- where a document is not of A4 size or does not have a margin of 35mm be must be gummed to A4 size;

PRACTICE NOTICE – All documents

- Documents shall bear in the left-hand lower corner of the first page of such document
  - the name,
  - telephone number and
  - (where available) the e-mail address of the legal representative filing such documents.
  - Where a litigant acts in person, the relevant details of such litigant shall likewise appear.
- The Registrar's office may refuse to accept any document which does not comply with these requirements.

Combined Summons

- Must also comply with Rule 18 in setting out the material terms
  - Particulars of claim must:
    - Be divided into paragraphs
      - 1 distinct averment = 1 paragraph
    - Clear & concise statement of material facts relied on

    (so that opponent can reply)

PLEADING IN GENERAL (RULE 18)

- 18(5): when denying allegation – not evasively – answer the point of substance
- 18(6): reliance on contract must allege
  - Written or oral
  - When, where and by whom it was concluded
  - Copy annexed if in writing
- 18(9) Party claiming division, transfer or forfeiture in divorce must give details of grounds

PLEADING IN GENERAL (RULE 18)

- 18(10): Damages – details to assess the quantum
- If suing for damages for personal injury must specify:
  - Date of birth
  - Nature and extent of the injuries
  - Nature, effects and duration of the disability
  - Separate amounts for;
    - Medical costs and hospital and other similar expenses
    - Pain and suffering
    - Disability in respect of:
      - Earnings of income
      - Enjoyment of amenities of live
    - disfigurement

PLEADING IN GENERAL (RULE 18)

- 18(11) damages from death of another must state date of birth of deceased
- Practice note 33 of the Western Cape High Court
  - Summons must allege that have been compliance with sec 127,129 and 131 read with Sec 130 of NCA

Dies Induciae

- Defendant within jurisdiction of court
  - 10 court days
  - Rule 19(1) read with definition of court days
- Defendant outside jurisdiction of court – Sec 24
  - One month if address is more than 150km from court
  - Two weeks if less
  - Normal days
- Defendant is The State or Province – Rule 19(2)
  - 20 court days
- Dies non – Rule 19(1)
  - 16 December – 15 January

ETTIENNE BARNARD ATTORNEYS

43

Summons

NB: Non compliance with Rule 17 or 18

⇩

Rule 18(12)

⇩

deemed to be an
IRREGULAR STEP
RULE 30

ETTIENNE BARNARD ATTORNEYS

44

- Summons Exam Question

ETTIENNE BARNARD ATTORNEYS

45

Service

- Rule 4
- By sheriff
- Between 7 am to 7 pm
- Only warrant of arrest on Sunday
- If can not effect service then ask court for assistance
- Rule 4A – after summons
- Email or Fax
- Hand or registered post

ETTIENNE BARNARD ATTORNEYS

46

INTERVENTION, JOINDER & THIRD PARTY NOTICES.

ETTIENNE BARNARD ATTORNEYS

2015/04/29 47

Joinder

- All parties who have direct and substantial interest in the relief that may be granted by court must be joined.
- Rule 10
- More than one plaintiff against one defendant
  - Can have different causes of action
- More than one defendant
  - Same question of law or fact
  - Jointly, jointly and severally, separately or in alternative

ETTIENNE BARNARD ATTORNEYS

48

Joinder – Costs

- If joined as plaintiff and is unsuccessful then may have pay other plaintiff and defendant's costs
- If defendant joined
  - Against successful defendant – plaintiff may pay costs
  - Unsuccessful defendant must pay costs
  - Pro rata
- Joinder of causes – can order separate trails

ETTIENNE BARNARD ATTORNEYS

49

Joinder

- If did not join when should have
  - Non-joinder
  - Raise by plea
- If joined when should not have
  - Mis-joinder
  - Point in limine
- Can apply to join somebody

ETTIENNE BARNARD ATTORNEYS

50

Joinder

- Examples
- Joint Ownership
- Driver of vehicle

ETTIENNE BARNARD ATTORNEYS

51

Intervention

- Rule 12
- Any person entitled to join as plaintiff or be joined as defendant may apply to intervene
- Notice to all parties
- Insolvency
- Intervention by creditor
  - Major creditor intervenes because no advantage to creditors

ETTIENNE BARNARD ATTORNEYS

52

THIRD PARTY PROCEDURE

- Rule 13
  - 3rd Party Notice – Form 7 where
  1. 3rd party
     1. is liable for contribution or [R13(1)(a)]
     2. Has indemnified the party issuing the notice
  2. Substantially same question or issue has arisen [R13(1)(b)]
- The notice must set out:
  - the nature of the claim,
  - grounds of claim,
  - the issue to be determined, and
  - relief sought
  - Rules regarding pleadings will apply [R13(2)(a)]

ETTIENNE BARNARD ATTORNEYS

53

THIRD PARTY PROCEDURE

- Copies of all pleadings up to date of notice must be served on 3rd party [r13(3)(a)]
- Served by sheriff
- The Notice (without copies) is delivered to other parties [r13(3)(a)]
- If pleadings have already closed, Court's consent is required to deliver a 3rd party notice [r13(3)(b)]

ETTIENNE BARNARD ATTORNEYS

54

THIRD PARTY PROCEDURE

- Third party must deliver a notice of intention to defend if 3rd Party intends to contest: [r13(4)]
- NB 3rd Party notice is NOT a summons.
  - Steyn v P Steyn Case No 3761/05 WLD
    - Default judgment NOT possible against 3rd Party
    - The 3rd Party is involved until the matter is finalized
    - Sanction if 3rd Party does not give NID
      - No further docs & notices need be served

ETTIENNE BARNARD ATTORNEYS

55

THIRD PARTY PROCEDURE

3rd Party May:

- Plead, Except or Otherwise Contest [r13(6)]
- Counterclaim against party issuing notice
- No Counterclaim against any other party
- Apply for separation of trials or hearing of any issue [r13(9)]

ETTIENNE BARNARD ATTORNEYS

56

THIRD PARTY PROCEDURE

- Lis (Dispute) is between party issuing notice & 3rd party
- No Lis (Dispute) between 3rd party & other parties to the litigation
- The third party is only a co-defendant
- Can only get order for apportionment of fault in the form of a declaratory order
- Not entitled to claim judgement in money
- Complement provisions of Sec 2 of Apportionment of Damages Act 34 of 1956 (can give judgement)

ETTIENNE BARNARD ATTORNEYS

57

THIRD PARTY PROCEDURE

- Sub-Rule 28A(10) MCP:
  - Where Court makes decision regarding liability of Defendant/Third party and
  - either Defendant discharges the obligation to the Plaintiff or pays more than his fair share,
  - then Defendant who discharged the obligation may execute for that amount which other Defendant is liable.

ETTIENNE BARNARD ATTORNEYS

58

THIRD PARTY PROCEDURE

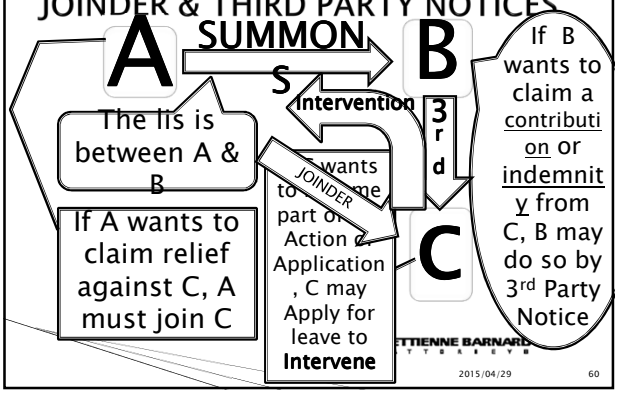
Defendant May

- Instead of 3rd Party Procedure, institute separate proceedings and then apply for consolidation of proceedings
  - MCC Contracts (Pty) Ltd v Coertzen 1998(4) SA 1046 (SCA)

ETTIENNE BARNARD ATTORNEYS

59

OPERATION OF JOINDER & THIRD PARTY NOTICES



ETTIENNE BARNARD ATTORNEYS

2015/04/29

60

Question

- A and B are divorcing.
- A is the plaintiff / husband
- B is the Defendant / wife
- The parties are married out of community with accrual.
- The husband has created various trusts to protect his assets.
- The wife feels that the assets of the trust must be included in the calculation of the accrual.
- How is the trusts added to the divorce action?

ETTIENNE BARNARD ATTORNEYS

61

Counterclaim

- Rule 24 (2)
- Reconvention against plaintiff and other person – apply to court
- If no claim against plaintiff then third party procedure

ETTIENNE BARNARD ATTORNEYS

62

Default Judgement

- When applied:
  - No Notice to defend
  - Failed to deliver plea
  - Failed to deliver declaration
  - Plaintiff or Defendant failed to appear at hearing

ETTIENNE BARNARD ATTORNEYS

63

Default Judgement

- Registrar grants judgements where debt is liquidated
- Practice note 33 of the Western Cape High Court
  - In order to satisfy court of matters referred to in sec 130 (3) NCA must give affidavit filed with application for judgement
- Practice note 28
  - Application – Form A
  - Draft order – Form B

ETTIENNE BARNARD ATTORNEYS

64

Default Judgement

- R 31(2)(b)
- Defendant can apply to set aside judgement
  - within 20 days of knowledge of judgement
  - Notice
  - Good cause
- R 31(5)(d)
- Any party dissatisfied with judgement
  - Within 20 days
  - Set matter down
  - Reconsideration by court

ETTIENNE BARNARD ATTORNEYS

65

Default Judgement

- If do not deliver declaration
- Notice of Bar – Rule 26
- Set down
- Apply for absolution
- Or Adduce evidence
- Judgement

ETTIENNE BARNARD ATTORNEYS

66

Default Judgement

- Did no plea
  - Rule 26 – Notice of Bar
  - Give 5 days notice of intention to apply for judgement
- If not liquidated amount must bring matter before court
- Must do a set down notice
- Do not have to serve if not notice to defend

ETTIENNE BARNARD ATTORNEYS

67

Notice of Defence

- Rule 19
- Address within 15 Km of court
- If late, but not taken judgment, must accept
- Must give full business or residential address
- Fax and email
- Same as Summons

ETTIENNE BARNARD ATTORNEYS

68

Declaration

- Rule 20
- 15 days after notice of defence
- If Summary Judgement – 20 after judgement refused – Rule 32 (8A)
- Only for simple summons
- Particulars of claim
- Relief
- Rule 31(3) notice of bar

ETTIENNE BARNARD ATTORNEYS

69

Declaration

- Question on page 59 of notes – eng

ETTIENNE BARNARD ATTORNEYS

70

- Pleading inherently defective
- Vague and embarrassing
- Not disclose defence
- If vague must send notice to remove complaint within 15 days
- Opposed motion

- Irregular step taken ie
  - Rule 18 not adhered to
  - Premature enrolment
  - Irregular notice of bar
  - Summons not served
- Within 10 days notice to remove problem
- App not taken further step
- Not remove 5 days notice apply to court

Exception – Rule 23	Irregular Proceeding–R30

ETTIENNE BARNARD ATTORNEYS

71

- Raised against pleading as a whole
- Purpose is to bring matter to end

- Only certain allegations
- Scandalous, vexatious or irrelevant
- Must show prejudice
- Application
- Within period allowed for next pleading

Exception	Notice to strike out

ETTIENNE BARNARD ATTORNEYS

72

Application to compel

- Rule 30A
- Failure to comply with rules – time limits
- IE failed to deliver further particulars
- Failed to discover
- Give 10 days notice for order to compel
- Fail to comply within 10 days, apply to court for appropriate order

ETTIENNE BARNARD ATTORNEYS

73

Notice of Bar

- Rule 26
- If barred can not deliver later
- 16 December to 15 January – dies non
- Application made to court to remove the bar

ETTIENNE BARNARD ATTORNEYS

74

- vlc-record-2013-05-13-17h16m24s-My Cousin Vinny.avi-_x264.mp4

ETTIENNE BARNARD ATTORNEYS

75

Plea

- Rules 18 and 22
- 20 days after notice of defence
- 20 days after declaration
- If not comply to requirements – Rule 30 – Irregular Step
- Each paragraph contain distinct averment
- If rely on contract must attach
- Signed by attorney and advocate or attorney with right of appearance

ETTIENNE BARNARD ATTORNEYS

76

Plea

- Admit an allegation
- Deny an allegation
- Admit an allegation but add justification (confess and avoid)
- Elect not to admit material fact and state to what effect
- If not denied / admitted – deemed to be admitted – R 30(3)

ETTIENNE BARNARD ATTORNEYS

77

Plea

- Can ask for claim of plaintiff be postponed until judgement of claim in reconvention
- Even if counterclaim is less than main claim
- Can claim apportionment against plaintiff or other joint wrongdoers

ETTIENNE BARNARD ATTORNEYS

78

Plea

- Special Plea
- Filed with plea
- Does not raise a defence on merits
- Dilatory (delay)
  - Lis pendens
  - Arbitration
  - Non-joinder
- Declinatory (final)
  - Prescription
  - Res Judicata
  - Absence of jurisdiction

ETTIENNE BARNARD ATTORNEYS

79

Plea

- Plea on declaration

ETTIENNE BARNARD ATTORNEYS

80

Counterclaim

- R 24
- Together with plea
- Same requirements as declaration
- R 24 (4) – Conditional Counterclaim
- Can add further "plaintiff's" with leave of court.
- Conditional counterclaim
- Irregular step – Rule 30

ETTIENNE BARNARD ATTORNEYS

81

Further pleadings

- Rule 25
- Replication
  - 15 days after plea
  - If not – all allegations in plea deemed denied
- Plea in reconvention
  - Comply with R 22
  - Within 15 days
- Rejoinder
  - 10 days after replication
- Replication to the plea in reconvention
  - 10 days after plea in reconvention

ETTIENNE BARNARD ATTORNEYS

82

Close of pleadings

- Rule 29
- parties have joined issue without adding further pleading
- last day for replication/subsequent pleading has lapsed and it has not been filed
- parties agree in writing & file with Registrar
- parties unable to agree, court on application declares pleading closed

ETTIENNE BARNARD ATTORNEYS

83

Offer to Settle

- Rule 34
- Offer for money
- Tender for performance
  - Personally or
  - execute an irrevocable power of attorney that must be delivered to the clerk/registrar
- All offers must be in writing
- Offer must be unconditional or without prejudice
- No payment into court

ETTIENNE BARNARD ATTORNEYS

84

Offer to Settle

- R 34(1) Defendant offer to plaintiff
- R 34 (3) any party to any party (including 3rd parties)
  - Specific sum
  - Specific Proportion
- R 34 (4) One of several defendants to plaintiff or other defendants

ETTIENNE BARNARD ATTORNEYS

85

Offer to Settle

- Notice of tender
  - to all parties
  - And must state if unconditional or without prejudice
  - All or part of the costs
  - Both claim and costs or only costs
  - Disclaims liability for costs and reasons therefore
- Action may be set down for costs alone

ETTIENNE BARNARD ATTORNEYS

86

Offer to Settle

- Acceptance of offer within 15 days, thereafter by way of written consent/order of court
- The Registrar will hand over the power of attorney
- Failure to pay/perform within 10 days, then 5 days notice, apply for judgment
- If offer without prejudice then no record in court file
- After judgement can bring offer to notice of court for purposes of costs order
- If not can bring to court's attention within 5 days and question of costs will be reconsidered.

ETTIENNE BARNARD ATTORNEYS

87

Offer to Settle

- Rule 34(13): Any party who discloses a without prejudice offer/tender to Court shall be liable for costs given against him even if successful in the action.
- Can also be used in motions and claims reconvention

ETTIENNE BARNARD ATTORNEYS

88

INTERIM PAYMENTS

- R 34A
- Actions for damages claims for
  - personal injuries
  - death
- Only for
  - Medical costs
  - Loss of income
- R 6 application and affidavit must contain
  - Amount of damages
  - Grounds for applications
  - Documentary proof attached

ETTIENNE BARNARD ATTORNEYS

89

INTERIM PAYMENTS

- This will only be granted
  - if defendant admitted liability or
  - plaintiff has judgment
- Defendant must have insurance for claim or able to afford it
- Interim order shall not be pleaded or disclosed to court
- If granted/refused, further Applications upon good cause shown
- Provisions apply to any claim in reconvention.

ETTIENNE BARNARD ATTORNEYS

90

INTERIM PAYMENTS

- If order made, court can in making final order:
  - Plaintiff repays all or part of initial
  - Payment varied
  - Payment made by other defendant
- Provisions apply to any claim in reconvention.

ETTIENNE BARNARD ATTORNEYS

91

Discovery

- HC Rule 35 makes mention of documents and tape recordings,
- Rule 23 Mag Court mentions documents and tape, electronic, digital or other forms of recordings including sound track, film, magnetic tape, record, or any other material on which visual images, sound or other information can be recorded.

ETTIENNE BARNARD ATTORNEYS

92

Discovery

- Hidden data or information associated to electronic documents
- **Meta-data**
- **Residual data**
- **Replicant data**

ETTIENNE BARNARD ATTORNEYS

DISCOVERY – hidden data or information

- **Meta-data**
  - electronic information that is recorded by the system about a particular document,
  - concerning its format, and how, when, and by whom it was created, saved, assessed, or modified.

ETTIENNE BARNARD ATTORNEYS

DISCOVERY – hidden data or information

- For example, most word processing software records who created or modified a document, as well as the dates and times of document revisions.
- Most e-mail software records the dates and times e-mails are created, sent, opened, and saved as well as the names of the originator and all recipients, including those "blind copied."

ETTIENNE BARNARD ATTORNEYS

DISCOVERY – hidden data or information

- This information may not be seen by users or appear in a print-out of the document in the ordinary course of business.
- However, meta-data is generally readily available, and can be extracted in searchable or printable form

ETTIENNE BARNARD ATTORNEYS

DISCOVERY – hidden data or information

- **Residual data**
- refers to any information that remains stored on a computer system after a document has been deleted.
- The computer does not necessarily "wipe clean" the disk or memory space in which the file was stored, but merely "tags" it as re-usable by the system.
- The "deleted" data may not become truly unavailable until this space is re-used.

ETTIENNE BARNARD ATTORNEYS

DISCOVERY – hidden data or information

- Hence, deleted files or fragments of deleted files are often retrievable for some period of time after "deletion."
- This can provide information about a document, and sometimes about changes made in successive revisions of a document, that would not otherwise be available.
- This kind of information is only recoverable using special "forensic" methods.

ETTIENNE BARNARD ATTORNEYS

DISCOVERY – hidden data or information

- **Replicant data**
- is created when a software program, such as a word processor, makes periodic backup files of an open file (e.g. at five minute intervals) to facilitate retrieval of the document where there is a computer malfunction.
- Each time the program creates a new back-up file, the previous back-up file is deleted, or tagged for reuse.

ETTIENNE BARNARD ATTORNEYS

Discovery

- After close of pleadings
- R35(1) Notice to Discover within 20 days
- Reply must be by affidavit and according to form 11
- R35(3) Notice for specific documents
  - Which party believes is in other's possession but not discovered
  - Make available for inspection
  - If not in possession, affidavit where if know within 10 days

ETTIENNE BARNARD ATTORNEYS

100

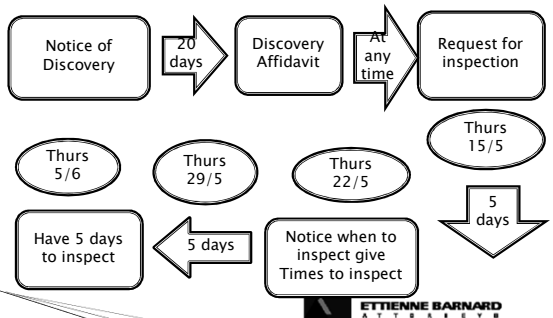
Discovery

- R35(4) party failing to discover after receiving notice may not use document.
- R35(5) RAF, state, cessionary – discovery against driver / owner / cedent

ETTIENNE BARNARD ATTORNEYS

101

Discovery



ETTIENNE BARNARD ATTORNEYS

2015/04/29

102

Discovery

- Rule 35(7) – If not discover then can apply to compel and if not then dismiss claim
- Rule 35(8) – Notice to specify particulars of **dates/parties** to any document within 15 days
- Rule 35(9) – Notice to admit within 10 days
  - That document properly executed and what it purports to be
  - If no objection – admitted without proof
  - if not admitted – to be proved but party could be ordered to pay the costs of proof

ETTIENNE BARNARD ATTORNEYS

10 3

Discovery

- Rule 35(10) – Notice to produce at trial
  - original
  - no witness necessary
  - Notice given 5 days before trial
- Rule 35(11) – Court may order to produce
- Rule 35(12): Any party may deliver notice (Form 15) to any party whose **pleadings/affidavits make reference** to any document/tape for inspection and making of a copy.
- Non compliance to notice – may not use document.
- Rule 23(13) provisions apply to Applications in so far as Court directs

ETTIENNE BARNARD ATTORNEYS

10 4

Further Particulars

- Rule 35(14)
  - After notice to defend
  - For purposes of pleading
  - Documents and other electronic recordings
    - Clearly specified
    - In party's procession
    - Relevant to issue in action
- Test: Essential and not useful (Cullinan Holdings Ltd v Stadsraad 1992(1) SA654 (T) at 647 F
- If not comply then Application R30A

ETTIENNE BARNARD ATTORNEYS

10 5

Further Particulars

- R 21
- Pleadings should contain sufficient detail
- If not → Exception / Irregular proceedings
- After close of pleadings, not less than 20 days before trial further particulars necessary for trial
- Compliance 10 days after receipt thereof
- Non-compliance: Compel/Dismissal/Striking out of defence
- After trial court will *mero motu* decide whether FP was necessary and allow costs accordingly

ETTIENNE BARNARD ATTORNEYS

10 6

Pre-trail Procedures

- Rule 36
- Expert Witnesses
- Plans & Photographs
- Inspection
- Medical Examination

ETTIENNE BARNARD ATTORNEYS

10 7

Court Practice no 39 and Rule 62(4)

Before applying for a date of set-down, the attorney in question shall collate, number consecutively and suitably secure all pages of the pleadings and documents in the court file. A complete index thereof, together with a questionnaire substantially in accordance with **Form "E"** in the Schedule hereto, shall also be prepared and delivered.[57]

ETTIENNE BARNARD ATTORNEYS

10 8

Pre trail Conference Rule 37

- Case Management
- Trail Date
- Judge assigned
- Must sign pre trail minute
- Must appear in front of judge

ETTIENNE BARNARD ATTORNEYS

Trial – PN 42(2)

Before 09h30 on the day before a matter on the continuous or opposed motion roll is set down to commence, the plaintiff's / applicant's counsel (or in the event of the plaintiff's / applicant's counsel not being available, his/her instructing attorney) shall advise the secretary to the Judge President in writing (including facsimile and/or e-mail)[63] –

(a) whether or not the matter has been settled;

(b) if not settled, what the prospects are of the matter being settled;

(c) of the likely duration of the matter;

(d) the names and telephone numbers of counsel on both sides; and

(e) a brief description of the issues involved.[64]

ETTIENNE BARNARD ATTORNEYS

Rule 36 – Expert Testimony

- vlc-record-2013-05-11-13h46m39s-VTS_01_2.VOB-_x264.mp4

ETTIENNE BARNARD ATTORNEYS

QUESTION 11 [5]

11.1 Briefly explain what the requirements are for requesting further particulars in the High Court and at what stage of the proceedings these may be requested. to prep for trial not to plead (2)

11.2 Name three instances when pleadings are considered closed (*litis contestatio*) in the High Court in terms of rule 29. (3)

ETTIENNE BARNARD ATTORNEYS

Execution

- Warrant of execution
- Sec 65 procedures
  - Emolument Order
  - Garnishee Order

ETTIENNE BARNARD ATTORNEYS

Execution – Immovables Rule 46

- Writ shall contain the following full description of the nature and situation (including address) of property
- ERF 10202 BRACKENFELL situate in the City of Cape Town, Stellenbosch Division, Western Cape
- 97 MOON ROAD BRACKENFELL

ETTIENNE BARNARD ATTORNEYS

Execution – Immovables Rule 46

- Must be served on
  - Owner
  - Registrar of Deeds
  - Occupier
- Must be done ito Rule 4

ETTIENNE BARNARD ATTORNEYS

Execution – Immovables Rule 46

- Sale by third party – not bondholder
- Send notice to:
  - preferent creditor
  - Local authority
- Within 10 days:
  - Agree to sale or
  - Give reserve price
- Registered post

ETTIENNE BARNARD ATTORNEYS

Execution – Immovables Rule 46

- Get date from sheriff
- May not be less than one month after warrant was served
- Draft notice of sale which contain:
  - Short description of property
  - Situation
  - Street address
  - Time and place of sale
  - Conditions may be inspected at sheriff

ETTIENNE BARNARD ATTORNEYS

Execution – Immovables Rule 46

- NOTICE OF SALE
  - Court Heading
  - Location of court & Case NO
  - Parties Names
  - Notice Portion
  - Date, Time and Place of sale (if not at court)
  - Advert Portion
  - Deeds office description

ETTIENNE BARNARD ATTORNEYS

Execution – Immovables Rule 46

- Physical address
- Improvements (caveat incorrect or too little detail) NBNBNB to avoid damages claims
- Summary of contract (Most NB Conditions of sale)
- Refer to full conditions of sale
- State sale subject to High Court Act & Rules

ETTIENNE BARNARD ATTORNEYS

ARRANGING SALE- IMMOVABLES(10)

- NB Payment aspects:
- Deposit eg) 10%
- Balance of Purchase Price
  - To be guaranteed
  - Due on Registration
  - Preferent creditors (eg. Bond Holder)
- Date
- Address of creditor's attorney
- Remember telephone number
- Draft the CONDITIONS OF SALE

ETTIENNE BARNARD ATTORNEYS

Execution – Immovables Rule 46

- Service by registered post of notice by sheriff 10 days before sale on:
  - Other judgement creditors who attached property
  - Every Mortgagee
  - All other sheriffs appointed in district
- Sheriff shall affix notice:
  - Notice board of magistrate's court
  - Place of sale

ETTIENNE BARNARD ATTORNEYS

12 1

Execution – Immovables Rule 46

- Creditor publish notice
  - Government Gazette
  - Newspaper in district
- Not less than 5 days
- Not more than 15 days
- Copies to Sheriff
- 20 days before sale – conditions of sale to sheriff
- Two copies

ETTIENNE BARNARD ATTORNEYS

12 2

Execution – Immovables Rule 46

- Form 21– conditions of sale
- It is an agreement
- Aim is to contractually bind the purchaser
- And to protect the
  - EXECUTION CREDTITOR
  - THE SHERIFF
  - THE AUCTIONEER
  - THE ATTORNEY OF THE AUCTIONEER

ETTIENNE BARNARD ATTORNEYS

29/04/2015 12 3

Execution – Immovables Rule 46

- The conditions will lie for inspection at the sheriff's office
- Must give to all other sheriffs in area
- Can apply to Magistrate Court to modify the conditions

ETTIENNE BARNARD ATTORNEYS

12 4

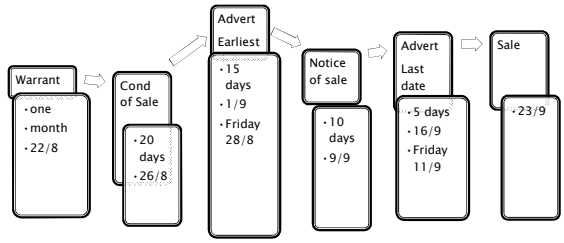
ARRANGING SALE– IMMOVABLES(12)

- NB Constantly watch the time limits
- Regular Deeds Office Searches
- Calculate Balance Owing and deliver statement to sheriff
- Attend the sale
- Appoint the conveyancer
- All days are court days

ETTIENNE BARNARD ATTORNEYS

29/04/2015 12 5

Execution – Immovables Rule 46



ETTIENNE BARNARD ATTORNEYS

12 6

Sales in Execution and CPA

ETTIENNE BARNARD

Acts, Rules and Regulations

- Sec 66, 67, 68 MCA
- Rules 39, 41, 42, 43
- Sec 36, 39,40 HCA
- Rules 45, 46
- Sec 45 CPA
- Regulations 18 to 33

ETTIENNE BARNARD

Auctioneer

- **Rule 41(8)(a) MCR – movables**
- **With approval of Magistrate an auctioneer or other person appointed by the sheriff**
- **Rule 43 (9)(a) MCR – immovables**
- **Interested party give notice to sheriff that property sold by auctioneer**
- **Rule 45 (7)(a) HCR – movables**
- **Sheriff shall sell by public auction**
- **Rule 46 (4)(a) HCR – immovables**
- **Sheriff will conduct sale, can appoint another sheriff**

ETTIENNE BARNARD

Section 45 CPA

- Auction includes a sale in execution
- Each lost is regarded as a separate transaction
- A sale is complete by the fall of the hammer or any other customary manner
- A bid may be retracted before sale is complete

ETTIENNE BARNARD

Section 45 CPA

- Notice must be given in advance if an auction is subject to:
  - A reserved or upset price
    - Third party to sell bonded property
  - A right to bid by or on behalf of the owner or auctioneer
  - **Rule 39(7) MCR and Rule 45 (13) HCR no sheriff or person obo sheriff may purchase any property at auction**

ETTIENNE BARNARD

13
1

Section 45 CPA

- If not given notice then:
  - The owner or auctioneer may not bid or appoint anybody to bid in their behalf
  - Auctioneer may not knowingly accept such a bid
  - Consumer may approach court to declare the transaction fraudulent
  - Court defined as not a consumer court

ETTIENNE BARNARD

Sec 55

- Consumer's rights to safe, good quality goods
- Sec 56 – implied warranty
- Sec 56 (2) six months
- Do not apply to goods bought at action – sec 55(1)

ETTIENNE BARNARD

Regulations of CPA – Reg 18

- Regulations apply to all auctions
- Any agreement relating to goods sold or bought at auction or agreement with regard to conduct of auction which contravenes regulations have no force and effect
- Auction selling immovable property must adhere to all applicable law including estate agents

ETTIENNE BARNARD

Regulation 19 – advertising

- No goods may sold unless advertised in way that general public can become aware of it
- **Rule 41(8)(c) MCR – If value less than R5000 do not have to advertise – execution creditor**
- **No such requirement in HCR**
- General public must
  - be aware of the auction
  - Know what goods are on offer
  - Rules governing the auction

ETTIENNE BARNARD

Regulation 19 – advertising

- Advertise at least 24 hours before auction for movables
- **Rule 41(8)(b) MCR – execution creditor must give notice of sale to sheriff 10 days before sale – one at court one at place of auction**
- **Rule 41(8)(c) MCR – must adv in local newspaper 10 days before sale**
- **Rule 45 (7)(a) HCR – execution creditor must adv in local paper 15 days before sale**
- **Rule 45(7)(c) HCR – sheriff must provide notice of sale to other sheriffs in area**

ETTIENNE BARNARD

Regulation 19 – advertising

- At least 5 days for immovables
- **Rule 43(6)(c) MCR – adv in newspaper registered with the Audit Bureau of Circulations of South Africa and Government Gazette circulating in district where immovable property is situated not less than 5 days and not more than 15 days before the date of sale**
- **Rule 46 (7)(c) HCR – the same except Audit Bureau**

ETTIENNE BARNARD

13
7

Regulation 19 – advertising

- Can withdraw goods at any time prior to start of auction
- **Rule 41(10) MCR – shall stop as soon as sufficient money has been raised to satisfy warrant**
- **Rule 45(11)(b) HCR – Surplus paid to debtor**
- If goods sold in execution – ad must state so clearly

ETTIENNE BARNARD

Regulation 20 – General Rules Ads

- Legible format and size
- Refer to website where can view regulations
- Date, place and time
- Name of auctioneer
- Where rules of auction can be obtained
- Particulars of goods offered

ETTIENNE BARNARD ATTORNEYS

Regulation 20 – General Rules Ads

- Subject to reserved or upset price
- Right to bid by or behalf owner or auctioneer
- Bidders must register
- Costs of auction
- BUT – this does not apply to roadside ads or classified ads in printed newspapers

ETTIENNE BARNARD ATTORNEYS

Regulation 20 – General Rules Ads

- But must have the following:
  - Prominently at top display word "auction"
  - Website reference
  - Date, place and time of auction
- Consumer can request full advertisement
- Can refer to website with full ad

ETTIENNE BARNARD ATTORNEYS

Regulation 20 – General Rules Ads

- May not advertise as a sale in execution unless
  - At least 75% of lots are offered as result of court order
  - The lots were not attained for purpose of resale at auction
  - Explanation of court order including identification of the court

ETTIENNE BARNARD ATTORNEYS

Regulation 20 – General Rules Ads

- Unless all lots are as result of court order ad must have words " with additions", "supplemented" or similar wording

ETTIENNE BARNARD ATTORNEYS

Regulation 20 – General Rules Ads

AUCTION IN THE HIGH COURT OF SOUTH AFRICA (KWAZULU-NATAL HIGH COURT, DURBAN) CASE NO. 11228/2012 In the matter between : ABSA BANK LIMITED PLAINTIFF and KUBARDHAREN CHINNAPEN DEFENDANT NOTICE OF SALE THE SALE BE SUBJECT TO THE TERMS AND CONDITIONS OF THE HIGH COURT ACT NUMBER 59 OF 1959 AND THE CONSUMER PROTECTION ACT NUMBER 68 OF 2008 AND THE RULES PROMULGATED THEREUNDER" A sale in Execution of the under mentioned property is to be held without reserve at THE SHERIFF'S OFFICE, INANDA 1: 18 GROOM STREET, VERULAM on 31 MAY 2013 at 10H00. Full Conditions of Sale can be inspected at the offices of the SHERIFF OF THE HIGH COURT, INANDA 1: FIRST FLOOR, 18 GROOM STREET, VERULAM, the Sheriff who will be holding the sale, and will also be read out by the Sheriff prior to the sale in execution. The Execution Creditor, Sheriff and/or Plaintiff's Attorneys do not give any warranties with regard to the description and/or improvements. A UNIT CONSISTING OF – (A)SECTION NO 9 AS SHOWN AND MORE FULLY DESCRIBED ON SECTIONAL PLAN NO. SS499/2001 IN THE SCHEME KNOWN AS SPORTPARK HEIGHTS IN RESPECT OF THE LAND AND BUILDING OR BUILDINGS SITUATE AT DURBAN, IN THE ETHEKWINI MUNICIPALITY AREA OF WHICH SECTION THE FLOOR AREA, ACCORDING TO THE SAID SECTIONAL PLAN, IS 40 (FORTY) SQUARE METRES IN EXTENT; AND (B)AN UNDIVIDED SHARE IN THE COMMON PROPERTY IN THE SCHEME APPORTIONED TO THE SAID SECTION IN ACCORDANCE WITH THE PARTICIPATION QUOTA AS ENDORSED ON THE SAID SECTIONAL PLAN. HELD BY DEED OF TRANSFER NO. ST9500/2010 (also known as: 12 SPORTPARK HEIGHTS, ASHPARK PLACE, SHASTRI PARK, PHOENIX, DURBAN, KWAZULU-NATAL) IMPROVEMENTS: (Not Guaranteed) GROUND FLOOR FLAT CONSISTING OF: BEDROOM, LOUNGE, KITCHEN, TOILET, SHOWER TAKE FURTHER NOTICE THAT: 1. This sale is a sale in execution pursuant to a judgment obtained in the above court 2. The Rules of this auction is available 24 hours prior to the auction at the office of the Inanda 1 at First Floor, 18 Groom Street, Verulam 3. Registration as a buyer is a pre-requisite subject to specific conditions, inter alia: I **Directive of the Consumer Protection Act 68 of 2008 (URL http://www.info.gov.za/view/DownloadFileAction?id=99961) I FICa – legislation i.r.o proof of identity and address particulars I** Payment of Registration deposit of R10 000.00 in cash I Registration Conditions The office of the Sheriff for Inanda 1 will conduct the sale with auctioneers T Rajkumar (Sheriff) and/or R Narayan (Deputy Sheriff) and/or M Chetty and/or Mr S Singh and/or Mrs R Pillay. Advertising costs at current publication rates and sale costs according to court rules apply. VELILE TINTO & ASSOCIATES Tinto House, Cnr Hans Strijdom & Disselboom Street, Wapadrand, DX 178, PRETORIA. TEL. NO: (012) 807 3366. FAX NO: (012) 807 5299. P O BOX 733, Wapadrand, 0050 Ref: U8049/DBS/F LOUBSER/K GREYLING/PD

ETTIENNE BARNARD ATTORNEYS

14
4

Regulation 20 – General Rules Ads



Weekend Argus Saturday/Sunday

713 Sale In Execution 713 Sale In Execution

SALE IN EXECUTION - CONSTANTIA

IN THE HIGH COURT OF SOUTH AFRICA, (WESTERN CAPE HIGH COURT, CAPE TOWN), Case No 2289/2012. In the matter between: NEDBANK LIMITED, Plaintiff and SALCIA (PTY) LIMITED (Registration Number: 2005/008487/07) First Defendant, CIARAN McGUCKIAN (Born on 9 April 1994) Second Defendant, SALLY ANN BROWNE McGUCKIAN (Born 19 May 1965) Third Defendant. Kindly take notice that the following property will be offered for sale in execution, by public auction, on 7 NOVEMBER 2012 AT 12H00 AT 9 MONTROSE TERRACE, CONSTANTIA, WESTERN CAPE in terms of a warrant of execution issued pursuant to a judgment granted by the abovementioned Honourable Court on 23 May 2012, and declaring the property below executable: Erf 9138 Constantia, In the City of Cape Town, Division Cape, Province of the Western Cape, In extent: 4000 (Four thousand) square metres, Held by Deed of Transfer No T85064/2006. Subject to such conditions as are mentioned or referred to therein. With physical address: 9 Montrose Terrace, Constantia, Western Cape. Although no warranties are given, the following information is provided: • The subject property is a double storey, plastered dwelling under a tiled roof and is currently under construction. The subject property is secured with a high boundary wall. • The proposed accommodation comprises of 6 (Six) bedrooms, 4 (Four) bathrooms, 3 (Three) dressing rooms, 2 (Two) cloak rooms, 3 (Three) family rooms, 1 (One) lounge area, 1 (One) kitchen with a scullery, 1 (One) dining room, 1 (One) laundry room, 1 (One) utility room, 1 (One) study, 1 (One) bar room, 2 (Two) internal stores and a wine cellar. • There is a flatlet attached to the subject property which comprises of 2 (Two) bedrooms, 1 (One) bathroom, 1 (One) kitchen and a lounge area. • The outbuildings attached to the dwelling comprise of a pool changing room, a store with an additional wine cellar, a 3 (Three) car garage with a store room. The Conditions of Sale may be inspected at the offices of, or obtained, from: • Sheriff of the High Court, Wynberg North, Tel: (021) 465 7560 and • VanderSpuy Cape Town, 4th Floor, 14 Long Street, Cape Town, Tel: (021) 419 3622. The following

ETTIENNE BARNARD ATTORNEYS

Regulation 20 – General Rules Ads



conditions of sale: • A deposit of 10 % (Ten Percent) of the purchase price, payable in cash or by bank guaranteed cheque and the balance on registration of transfer, which balance shall be secured by an approved Bank guarantee, to the Plaintiff's Conveyancers within 14 (fourteen) days of the date of sale; • Sheriff's commission, calculated as follows : 6% on the first R30 000.00 of the proceeds of the sale; 3.5% on the balance of the proceeds of the sale in execution ('the balance' = the proceeds of the sale minus R30 000.00 referred to above); BUT subject to a maximum of R8 750.00 (excluding VAT) and a minimum of R440.00 (excluding VAT). The sale in execution will be conducted by Morne Van Der Vyver ("the auctioneer") of the Sheriff of the High Court Wynberg North (Tel: 021 465 7560) and the following information can be obtained from the auctioneer: • rules of auction; • directions to the property put up for sale in execution; • directions to the premises where the sale in execution will be taking place; and • 1 (one) free copy of this notice. A copy of the regulations promulgated in terms of the Consumer Protection Act 68 of 2008 can be obtained at the following URL link: http://www.info.gov.za/view/DownloadFileAction?id=145412. Prior to the commencement of the auction, any person that intends to bid must register his or her identity on the bidder's record and such registration must meet the requirements of the Financial Intelligence Centre Act 38 of 2001 in respect of the establishment and verification of identity of the person. The purchaser shall be liable for the advertising of the sale in execution including the costs of conducting the auction. Dated at Cape Town this 5th day of October 2012. **VANDERSPUY CAPE TOWN**, Attorneys for Plaintiff, Per: Mr Y Cariem, 4th Floor, 14 Long Street, CAPE TOWN, Tel: (021) 419 3622 (Fax: (021) 418 1329). (Ref: Mr Y Cariem) (8981206)

ETTIENNE BARNARD ATTORNEYS

Notice of Sale – Movable

- Rule 41(8)(b) MCR
  - Court and case no
  - Execution Creditor and debtor
  - Place of auction
  - Date and time of auction
  - List of items to be sold
- Rule 45 (7)(c) HCR
- Sheriff must forward to other sheriff in region

ETTIENNE BARNARD ATTORNEYS

Notice of Sale – Immovable property

- Rule 43(6)(b) MCR
  - Short description of property
  - Address of property
  - Date, time and place of the auction
  - Material conditions thereof

ETTIENNE BARNARD ATTORNEYS

Notice of Sale – Immovable property

- A notice of sale which contains no more than the technical designation of the land, as described in the title deed, is inadequate.
- the description must deal with the main characteristics of the property
- are there any improvements or buildings on the land
- the town planning zone of the property
- special privileges or exemptions in respect of the property in terms of the relevant town planning scheme.

ETTIENNE BARNARD ATTORNEYS

14
9

Notice of Sale – Immovable property

- If the notice of sale is inadequate, the sale in execution of the property can be set aside at the instance of an interested party.
- Section 70 of the MC Act provides that a sale in execution of movable property after delivery or immovable property shall not, after registration of transfer, be liable to be impeached as against a purchaser in good faith and without notice of any defect.

ETTIENNE BARNARD ATTORNEYS

Notice of Sale – Immovable property

- **If the sale is, however, null and void because it violates the principle of legality, the sheriff can have no authority to transfer ownership of the property and the purchaser will not acquire ownership despite registration of the property in his name.**
- **Markom v Menqa**
- **Absa Bank v Van Eeden & others 2011 (4) SA 430 (GSJ)**
  - **Sec 70 discussion**
  - **Sale of motor vehicles the sheriff must give notice of the sale to the title holder and owner**

ETTIENNE BARNARD ATTORNEYS

Notice of Sale – Immovable property

- **Rule 46 (7)(c) – HCR**
- **short description of the property,**
- **its situation and**
- **street number,**
- **the time and place for the holding of the sale**
- **the fact that the conditions may be inspected at the office of the sheriff conducting the sale**

ETTIENNE BARNARD ATTORNEYS

15
2

Regulation 21 – Rules

- Rules must be done in writing
- Available at least 24 hours prior to the auctions
- On first page in large letters words "rules of auction"
- Date, place and time of auction
- Full name, physical address and contact details of auctioneer
- Breakdown of total costs of advert and auction and any additional costs
- Regulation 21(2)

ETTIENNE BARNARD ATTORNEYS

Conditions of Sale

- **Rule 43(7) MCR**
- **Execution creditor prepare conditions of sale**
- **Payment of interest by purchaser**
- **Not less than 20 days before date of sale**
- **Rule 46(8)(a) HCR**
- **Execution creditor prepare conditions of sale**
- **Not less than 20 days before date of sale**
- **Must conform with Form 21**

ETTIENNE BARNARD ATTORNEYS

Regulation 21 – Rules

- Rules may:
  - not exclude liability in respect of inaccurate information
  - not exclude liability in respect of the rules of auction not meeting the requirements of these regulations
  - contain any qualification, reservation or diminution of the requirements of the regulations
  - Not exclude the right of inspection

ETTIENNE BARNARD ATTORNEYS

Regulation 21 – Rules

- Must be signed by auctioneer who is going to conduct the auction and certify that complies with Reg 21
- Auctioneer is personally accountable and liable for the rules
- Rules need not be read at auction

ETTIENNE BARNARD ATTORNEYS

Prohibited behaviour – Reg 24

- An Auctioneer may not:
  - Receive commission for movable goods unless it was delivered to the purchaser
  - Receive commission for immovable goods until purchaser and seller have signed agreement
  - Receive commission where the purchaser or the seller defaults

ETTIENNE BARNARD

Bidder's Record – Reg 26

- For every auction there must be a bidders' record
- Info must adhere to Fica
- Letter of authority
- Resolution
- Record is open for public inspection before, after and during auction

ETTIENNE BARNARD

Bidding – Reg 28

- Bidder number and paddle or other device
- Place of auction must be open and accessible
- Must have vendor's roll which all details of auction are recorded – see list in reg 28(4)
- Must have reasonable period to inspect goods
- No fee charged for participation but may have refundable deposits
- At end of auction
  - Must announce auction is finished
  - Sign vendor's roll
  - Certify that auction was done in accordance with the reg

ETTIENNE BARNARD

Records – Reg 31

- Records must be kept for a period of at least three years

ETTIENNE BARNARD

Execution – immovable

- JAPHTA v SCHOEMAN & OTHERS 2005 (2) SA 140 (CC)
- Standard Bank v Saunderson 2006 (2) SA 264 (SCA)
- Elsie Gundwana v Steko Development CC and others [2011] SACC 14
- Mkhize v Umvoti Municipality and others 2012 (1) SA 509 (SCA) – Judicial oversight also required when property is not debtor's home

ETTIENNE BARNARD

Execution – immovable

- Nedbank v Fraser & others 2011(4) SA 363 GSJ
- First Rand v Folscher 2011(4) SA 314 (GNP)
- Standard Bank v Bekker 2011(6) SA 111 (WCC)
- Standard Bank v Dawood 15438/11 WCC 9/5/12
- Knox v Mofokeng 33437/2011 SGJ 30/1/12
- Nedbank v Trustees for the Time being of the Prite Trust 2012 JDR 2103 (GNP) – trust protected

ETTIENNE BARNARD

- Slides at
- www.Barnards.co.za

ETTIENNE BARNARD

ETTIENNE BARNARD

High Court Practice

ETTIENNE BARNARD

Applications

- When use an application
  - Prescribed
  - No real factual dispute
  - Can be dealt with on the papers

ETTIENNE BARNARD

Applications – Rule 6

- 1 Ex Parte Applications
- 2 Applications by notice
- 3 Urgent Applications
- 4 Specific Applications
- 5 Interlocutory Applications
- 6 Chamber Book Applications

ETTIENNE BARNARD

Ex Parte Applications R6(4)

- Only if
  - notice would defeat purpose of application;
    - Anton Pillar
  - or
  - Not affect on another person;
    - Curator as Litem
- Form 2
- Set down before noon on the court day but one

ETTIENNE BARNARD

Anton Piller Application

- Applicant has a cause of action wants to pursue against respondent
- Respondent has in her possession specific and specified documents or things that constitute vital evidence for application
- Real and well founded fear that this evidence may be hidden or destroyed by time matter came to court
- Frangos v Corpcapital 2004 (2) SA 643 T

ETTIENNE BARNARD ATTORNEYS

169

Anton Piller Application

- PN 35
- Form C
- Form D
- Interim Interdict
- 10 days to institute action

ETTIENNE BARNARD ATTORNEYS

170

Anton Piller Application

The *'supervising attorney'* referred to in the notice and draft order should be an attorney whom the court considers suitable in the circumstances and who is not a member or an employee of the firm acting for the applicant. The application shall include information as to the identity and experience of the proposed supervising attorney.

Where the premises concerned are likely to be occupied by an unaccompanied woman and the supervising attorney is a man, at least one of the persons attending on the service of the notice and order should be a woman.

ETTIENNE BARNARD ATTORNEYS

171

Anton Piller Application

The order and the accompanying notice are to be served by the sheriff and the contents explained by the supervising attorney in whose presence and under whose supervision the provisions of the order are to be carried out. The supervising attorney shall ensure that no items are removed from the premises until a list of items to be removed has been prepared, and a copy thereof has been supplied to the applicant's attorney and the person served with the order, if present, and such person has been afforded a reasonable opportunity to check such list. The supervising attorney shall not permit the premises to be subjected to a search for items not appearing on the schedule of listed items referred to in paragraph 2 of the order.

172

Anton Piller Application

The supervising attorney shall file with the registrar, by no later than noon on the day but one preceding the return day of the order, a concise report describing the manner in which the order was complied with. The supervising attorney shall ensure that a copy of his/her report is delivered to applicant's attorney and to respondent (or his/her attorney, if represented).

ETTIENNE BARNARD ATTORNEYS

173

Application on Notice

- Form 2a
- Affidavit
- 5 days defence
- 10 days for opposing affidavit
- 15 days if Government
- 10 days for replying affidavit
- Must be served by sheriff

ETTIENNE BARNARD ATTORNEYS

174

Interdict / Urgent Applications

- Interdict interim / final
- Must give notice – except if defeat object
- Normal requirements for interdict
- Must give reasons for urgent applications
- Rule 6(12)
- Can place matter for reconsideration

ETTIENNE BARNARD ATTORNEYS

175

Urgent Applications

- General Law Amendment Act 62 of 1955
- Rule nisi interdict
- State
- 72 hours notice

ETTIENNE BARNARD ATTORNEYS

176

Specific Applications

- Summary Judgment (Rule 32)
- Maintenance *pendente lite*, contribution towards costs, interim custody and access to children Rule 43 [form 17]

ETTIENNE BARNARD ATTORNEYS

177

Interlocutory Applications

- Rule 6(11) HC
- Rule 55(4) MC
- Hybrid Application
- Reasonable time
- Notice to other party
- Affidavit

ETTIENNE BARNARD ATTORNEYS

178

Exam Question

- Act for the defendant in a high court action which in roll in two months time.
- You served a R35(1) notice on plaintiff attorneys.
- They have not responded
- Draft the necessary application
- Page 76 eng notes

ETTIENNE BARNARD ATTORNEYS

179

- vlc-record-2013-05-13-17h16m24s-My Cousin Vinny.avi-_x264.mp4

ETTIENNE BARNARD ATTORNEYS

180

Chamber Book Applications

37. **Chamber Book Applications**[54]

Applications may be brought through the Chamber Book in the following matters: –

(1) to authorise the issue of process on Saturdays, Sundays, public holidays and outside the times specified in Rule 3;

(2) for directions as to the set down of applications referred to in Rule 6(11);

(3) for judgment on confession as provided for in Rule 31(1);

(4) for judgment following acceptance of an offer or tender and failure to pay or perform within the period specified in Rule 34(7);

(5) for an order for payment of unpaid costs following acceptance of an offer or tender made in terms of Rule 34(9);

ETTIENNE BARNARD ATTORNEYS

Chamber Book Applications

(11) for directions for service in applications involving the Prevention of Illegal Eviction from and Unlawful Occupation of Land Act *(PIE)* 19 of 1998;

(12) for an order on a case submitted by the taxing master (including an award as to costs) in terms of Rule 48(2);

(13) for an order by consent of the parties for the promotion of a matter on the roll, such matter to be decided by the Judge President or, in his or her absence, by the senior duty judge;

ETTIENNE BARNARD ATTORNEYS

Affidavits

- D G Rees & E C Jowitt v Investec Bank Limited (330/13) [2014] ZASCA 38 (28 March 2014)
- Personal knowledge of every fact not required

ETTIENNE BARNARD ATTORNEYS

Facts in Dispute

- Plascon – Evans Paints v Van Riebeeck (Pty) Ltd 1984 (3) SA 623 A
- National Scrap Metal (Cape Town) v Murray & Roberts 2012 SCA
- On facts stated by Respondent together with admitted facts in Applicants Affidavit, the applicant is entitled to relief, court will grant it.
- Court will accept Respondent's version unless it was clearly untenable.

ETTIENNE BARNARD ATTORNEYS

Procedure for Applications

17. The other duty judge, presiding in what is known as the *'Fast Lane'* Court, will deal with the following matters: [19]

(1) all unopposed urgent applications brought under Rule 6(12) not on the ordinary Third Division roll;

(2) all matters becoming opposed on the Third Division roll;

(3) all matters which, even if unopposed, are in the opinion of the senior duty judge such as to warrant a hearing in a separate court, either by reason of the complexity of the matter or the volume of papers;

ETTIENNE BARNARD ATTORNEYS

Procedure for Applications

(4) all chamber book applications;[20]

(5) all matters referred to the *'Fast Lane'* Court by the Judge President.

18. In all matters to be heard in the Third Division a notice of set down must be filed with the Registrar by no later than noon on the day but one prior to the date of hearing.[21]

ETTIENNE BARNARD ATTORNEYS

Procedure for Applications

20. In all **opposed matters** in Third Division (including Fast Lane) –

(1) the applicant's attorney must file a practice note when setting the matter down, indicating –

(a) whether or not the matter is likely to proceed on the allocated date;

(b) where applicable, the grounds of urgency;

(c) if the matter is to be postponed, the reason(s) for the postponement;

(d) full details, including contact numbers, of the legal representatives of all the parties. [23]

ETTIENNE BARNARD ATTORNEYS

187

Procedure for Applications

(2) where the matter is likely to proceed on the allocated date, the papers in the court file must be collated, indexed and paginated before the matter is set down;[24]

(3) where it is anticipated that argument is likely to last for more than half a day, the parties must approach the Judge President for directions regarding the hearing of the matter.[25]

ETTIENNE BARNARD ATTORNEYS

188

Procedure for Applications

23. The papers in the court file must likewise be collated, indexed and paginated –

(1) in all return days; and

(2) in all matters where the papers exceed 50 pages, whether the matters are opposed or unopposed.

ETTIENNE BARNARD ATTORNEYS

189

27. **Service and Publication of Orders**

(1) Whenever a rule *nisi* or a provisional order has to be served (whether by delivery and/or publication and/or posting), such service shall be effected not later than 10 days prior to the return date of the said *rule nisi* or provisional order.[34]

(2) Whenever an order of court has to be published in a newspaper or in any other publication, such order shall be published only in the language of the relevant newspaper or publication, irrespective of the language in which the order is issued, unless an order is specifically made that the order of court be published in another language. Where, however, a newspaper or publication is published in more than one language, priority shall be given to the language in which the order of court is issued.[35]

(3) In all return days an affidavit must be filed by the applicant's attorney of record, setting out in what respects there has and/or has not been compliance with the court order and attaching the relevant supporting documents (eg court order, sheriff's return and/or other proof of service, publication or posting).[36]

ETTIENNE BARNARD ATTORNEYS

190

Procedure for Applications

(4) Where an order of court has been published in the *Gazette* or a newspaper, the full sheet with the heading and the date of a Gazette or newspaper containing the relevant publication should be attached to the affidavit referred to in the preceding paragraph. This page must be folded to A4 size in such a way as to show the order and the date of publication.[37] Alternatively, and if only a cutting of the order is filed, the date and newspaper in which it was published shall be proved by way of the affidavit referred to in the preceding paragraph, which shall explain *inter alia* why the full page is not filed.[38]

(5) These directions shall apply *mutatis mutandis* where service is effected by way of edictal citation or substituted service.

ETTIENNE BARNARD ATTORNEYS

191

Procedure for Applications

29. **Postponements**

(1) As soon as possible after applicants' legal representatives become aware that a matter on the Third Division roll is to be postponed or removed from the roll, they shall without delay notify the registrar of the duty judge concerned.[40]

(2) Where a matter has previously been postponed, an affidavit must be filed motivating an application for any further postponement.[41]

ETTIENNE BARNARD ATTORNEYS

192

Procedure for Applications

34. **Urgent Applications** [50]

(1) When an application is alleged to be of extreme urgency, the applicant's legal representative shall approach the Registrar to arrange a hearing as soon as possible in consultation with the duty judge.

(2) Practitioners are expected to adhere as far as possible to the basic requirement of Rule 6(5)(*a*) that Form 2(a) be used in applications, including applications with an element of urgency. (In this regard, the attention of practitioners is drawn to the judgment in *Gallagher v Norman's Transport Lines* 1992 (3) SA 500 (W) at 502D – 504C.) [51]

(3) Opposed matters which are not of extreme urgency but which are nevertheless too urgent to await a hearing in the ordinary course on the continuous roll, will be granted some preference. For convenience these matters are called *'semi-urgent'* matters.

ETTIENNE BARNARD ATTORNEYS

44. **Opposed Motions** [70]

(1) The Registrar shall keep an Opposed Motion Roll, separate from the continuous roll for trials.

(2) The applicant or respondent in an opposed motion shall apply to the Registrar for a date of set-down on the Opposed Motion Roll in terms of Rule 6(5)(*f*) after complying with the requirements of Practice Note 39 above.

(3) The Registrar shall allocate the first available date of set-down and shall give notice to all parties of such date, which date shall not be less than 25 days from the date of such notice.

(4) The applicant's legal representative shall, together with the applicant's heads of argument, file a short note setting out the name and number of the matter, the names of counsel involved (if known) and, in brief, the nature of the matter and its estimated duration. If an applicant is not represented, this sub-paragraph shall be complied with by respondent's legal representative.

ETTIENNE BARNARD ATTORNEYS

Heads of Argument PN 50

(a) by the delivery of an appropriate number of copies of the heads of argument of plaintiff, applicant, or excipient (as the case may be) to Room 5 of the office of the Registrar and by the entry of the required information in the register of heads of argument by the person who files same not less than 10 days before the date upon which the matter is to be heard;

(b) by like delivery of the heads of argument of defendant or respondent (as the case may be) in like manner not less than 5 days before the said date;

(c) by exchange between the parties' attorneys of a copy of each party's heads of argument on the dates on which same are filed in Room No 24 by Counsel;

ETTIENNE BARNARD ATTORNEYS

9. During **court recesses –**

(1) all unopposed matters (except divorce actions) shall be heard on TUESDAYS in Third Division;

(2) all unopposed divorce actions, as well as applications in terms of Rule 43 (opposed and unopposed), shall be heard on WEDNESDAYS in the Third Division;

(3) all Notices of Set Down for matters in Third Division shall be filed before 12h00 on the preceding FRIDAY;

(4) urgent and/or opposed matters shall be heard at such times as the senior duty judge may determine;

ETTIENNE BARNARD ATTORNEYS

Edictal Citation

- Summons must be served personally
- Must have permission to serve summons outside the RSA
- Application to Court
- Must know where Defendant is
- Translate Summons to language of country
- Documents sent to Department of Foreign Affairs to sent to embassy who will serve
- Certain countries summons may be served by attorney

ETTIENNE BARNARD ATTORNEYS

Substituted Service

- Defendant is untraceable
- Must attempt to find defendant
- Indicate what newspaper will be published in

ETTIENNE BARNARD ATTORNEYS

Edictal Citation/Substituted Service

HC Rule 5

- EC def/resp **out**side S A
- SS d/r **in**side S A **but** unknown **where**
- Form 1

ETTIENNE BARNARD ATTORNEYS

199

EC/SS Procedure

- Ex Parte Application
- No respondent is cited
- Application may be heard in chambers

ETTIENNE BARNARD ATTORNEYS

200

EC/SS Affidavit Content

- Nature and extent of claim
- Grounds of claim
- Grounds for jurisdiction in main claim
- Suggested manner of service
- Info on def/resp whereabouts if known
- If not known:
  - Last known whereabouts
  - Enquiries made to establish current whereabouts

ETTIENNE BARNARD ATTORNEYS

201

EC/SS

- Court may order as to manner of service as it deems fit
- Must also order the time within which notice of intention to defend is to be given
- Or any other step that is to be taken by the person to be served.
- Where service by publication is ordered,
  - it may be in a form similar to Form 1,
  - approved and signed by the registrar or clerk of the court.

ETTIENNE BARNARD ATTORNEYS

202

EC/SS

- Cmc Woodworking Machinery / Pieter Odendaal Kitchens – face book service

ETTIENNE BARNARD ATTORNEYS

Review

- From Lower Courts
- Sec 22 of Superior Court Act set out grounds:
  - Absence of Jurisdiction
  - Interest in the cause
  - Bias
  - Malice
  - Corruption
  - Gross irregularity in the proceedings
  - Admission of inadmissible or incompetent evidence
  - Rejection of admissible or competent evidence

ETTIENNE BARNARD ATTORNEYS

204

Review

- Rule 53
- Notice of Motion and affidavit
  - Magistrate
  - All Parties
- Show cause why decision should not be reviewed
- Within 15 days of notice
  - Magistrate despatch record to registrar
  - Magistrate's Reasons

ETTIENNE BARNARD ATTORNEYS

205

Review

- Applicant get record from registrar and make copies for:
  - Each party
  - Two for the court
- May within 10 days of record amend notice
- Attorney must certify record as true copy
- After preceding officer's affidavit must set down like ordinary application
- Single judge on any motion day
- No time limit but must be within reasonable time.

ETTIENNE BARNARD ATTORNEYS

206

- Draft application for review p126

ETTIENNE BARNARD ATTORNEYS

207

Appeals from High Court

- Rule 49
- Sec 16 must ask for leave to appeal
- Can ask immediately from judge
- Grounds must be indicated
- Otherwise 15 days from date of judgement or reasons given
- Normally Judge that presided at trial
- Reasonable prospects of another court coming to different conclusion
- To full court or supreme court of Appeal

ETTIENNE BARNARD ATTORNEYS

208

Appeals

- If refuse leave then can apply to Supreme Court of Appeal
- Within one month of leave refused
- If leave granted must within 20 days notice of appeal
- Must state whole or part of the Judgement
- Also findings of fact and or rulings of law

ETTIENNE BARNARD ATTORNEYS

209

Appeal

- Must be judgement or Order
- Zweni v Minister of Law and Order 1993 (1) SA 523 A
  - Final effect
  - Definitive of the rights of parties
  - Disposing substantial portion of the relief
- If no practical effect can dismiss
- Operation of order suspended where appeal has been noted – sec 18

ETTIENNE BARNARD ATTORNEYS

210

Appeal

Application leave to appeal	
Within 15 days after judgment or reasons given	Rule 49 (1)

Notice to Judge	
Together with court file	Western Cape Consolidated Practice Notes 45(1)

29/04/2015 21 1

Appeal

Arrange date of leave to Appeal	
Attorney for applicant and with respondent attorney within 10 days approach judge to arrange date	WCCPN 45 (2)

If fails to arrange	
Respondent not later than 15 days and 48 h notice to applicant approach judge for date	WCCPN 45 (3)

29/04/2015 21 2

Appeal

If leave granted to full court – Now appellant	
20 days for notice of appeal	RULE 49(2)

Cross Appeal	
10 Days after notice of appeal	RULE 49 (4)

ETTIENNE BARNARD ATTORNEYS

29/04/2015 21 3

Appeal

Apply for a hearing date to the registrar	
within 60 days after notice of appeal	RULE 49(6)(a)

If appellant does not apply respondent applies	
in following 10 days	RULE 49(6)(b)

ETTIENNE BARNARD ATTORNEYS

29/04/2015 21 4

Appeal

3 Copies of Record plus complete index to Registrar	
Done with application for date	R 49 (7)(b)

2 Copies of record to Respondent	
Done with application for date	R 49 (7)(b)

Security by appellant for costs of appeal	
Before lodging copies	R49(13)(a)

ETTIENNE BARNARD ATTORNEYS

29/04/2015 21 5

Appeal

nb if copies not filed with registrar	
within 40 days of application for hearing date other party can apply for appeal to lapse	R 49(7)(d)

Registrar assign date for hearing	
Give 20 days notice	R 49(7)(c)

ETTIENNE BARNARD ATTORNEYS

29/04/2015 21 6

Appeal

Concise and Succinct statement of main points and list of authorities by Appellant plus 3 copies to Registrar	
At least 15 days before hearing	RULE 49(15)

Concise and Succinct statement of main points and list of authorities by Respondent plus 3 copies to Registrar	
At least 10 days before hearing	RULE 49(15)

ETTIENNE BARNARD ATTORNEYS

Appeal

Requirements for copies Rule 49 (8)

- Clearly typed on A4 paper, double spacing
- Every tenth line on each page numbered
- Bound
- Left margin 35 mm

Appeal & Review

- Particular period
- Bound by record
- Wrong conclusion on the facts or law

- Reasonable time
- Not bound by record
- Limited grounds for review

Appeal	Review

ETTIENNE BARNARD ATTORNEYS

- Draft Appeal Page 126

ETTIENNE BARNARD ATTORNEYS

Appeal to SCA

- Leave to Appeal
  - Leave to appeal against judgement of High Court was refused
  - Leave to appeal against judgement of High Court on appeal from Mag Court was refused (2 judges)
  - Appeal against judgement of full bench
- Application to Chief Justice
- Heard by two judges
- Can grant or refuse or refer to court
- If to court then 3 add copies of application in time given by judges

ETTIENNE BARNARD ATTORNEYS

Appeal

- 2 copies of application and affidavit
- Do not attach record
- Serve on Respondent
- Must attach:
  - Copy of order of court appealed against
  - Copy of order refusing leave to appeal
  - Copy of judgement of court aquo
  - Copy of judgement of refusal of leave to appeal

ETTIENNE BARNARD ATTORNEYS

Appeal to SCA

Application leave to appeal	
Within 21 days after judgment or reasons given	Sec 21 & SCA Rule 6 (1)

Reply by Respondent	
Within one month	SCA Rule 6(3) and sec 17

Answer by Applicant	
10 days	SCA RULE 6(4)

ETTIENNE BARNARD ATTORNEYS

Appeal to SCA

If leave granted	
Within 1 month notice of appeal	SCA RULE 7(1)

Counter Appeal	
1 month after notice of appeal	SCA RULE 7(2)

ETTIENNE BARNARD ATTORNEYS

APPEALS (CIVIL MATTERS) TIMELINE CHECKLIST (11)

APPEAR AT HEARING
ARRANGE WITH OPPONENT FOR INTRODUCTION TO PRESIDING JUDGES (SENIOR INTRODUCES) BEFORE HEARING

IF YOU INTEND USING COUNSEL OR ATTORNEY TO APPEAR,
BRIEF HIM/HER WELL IN ADVANCE WITH A COPY OF THE COMPLETE RECORD (FINALLY NUMBERED AND PAGINATED)

ETTIENNE BARNARD ATTORNEYS

Rule 36 – Expert Testimony

- vlc-record-2013-05-11-13h46m39s-VTS_01_2.VOB-_x264.mp4

ETTIENNE BARNARD ATTORNEYS

Execution

- Warrant of execution
- Sec 65 procedures
  - Emolument Order
  - Garnishee Order

ETTIENNE BARNARD ATTORNEYS

Execution – Immovables Rule 46

- Writ shall contain the following full description of the nature and situation (including address) of property
- ERF 10202 BRACKENFELL situate in the City of Cape Town, Stellenbosch Division, Western Cape
- 97 MOON ROAD BRACKENFELL

ETTIENNE BARNARD ATTORNEYS

Execution – Immovables Rule 46

- Must be served on
  - Owner
  - Registrar of Deeds
  - Occupier
- Must be done ito Rule 4

ETTIENNE BARNARD ATTORNEYS

229

Execution – Immovables Rule 46

- Sale by third party – not bondholder
- Send notice to:
  - preferent creditor
  - Local authority
- Within 10 days:
  - Agree to sale or
  - Give reserve price
- Registered post

ETTIENNE BARNARD ATTORNEYS

230

Execution – Immovables Rule 46

- Get date from sheriff
- May not be less than one month after warrant was served
- Draft notice of sale which contain:
  - Short description of property
  - Situation
  - Street address
  - Time and place of sale
  - Conditions may be inspected at sheriff

ETTIENNE BARNARD ATTORNEYS

231

Execution – Immovables Rule 46

- NOTICE OF SALE
  - Court Heading
  - Location of court & Case NO
  - Parties Names
  - Notice Portion
  - Date, Time and Place of sale (if not at court)
  - Advert Portion
  - Deeds office description

ETTIENNE BARNARD ATTORNEYS

29/04/2015

232

Execution – Immovables Rule 46

- Physical address
- Improvements (caveat incorrect or too little detail) NBNBNB to avoid damages claims
- Summary of contract (Most NB Conditions of sale)
- Refer to full conditions of sale
- State sale subject to High Court Act & Rules

ETTIENNE BARNARD ATTORNEYS

29/04/2015

233

ARRANGING SALE- IMMOVABLES(10)

- NB Payment aspects:
- Deposit eg) 10%
- Balance of Purchase Price
  - To be guaranteed
  - Due on Registration
  - Preferent creditors (eg. Bond Holder)
- Date
- Address of creditor's attorney
- Remember telephone number

- Draft the CONDITIONS OF SALE

ETTIENNE BARNARD ATTORNEYS

29/04/2015

234

Execution – Immovables Rule 46

- Service by registered post of notice by sheriff 10 days before sale on:
  - Other judgement creditors who attached property
  - Every Mortgagee
  - All other sheriffs appointed in district
- Sheriff shall affix notice:
  - Notice board of magistrate's court
  - Place of sale

ETTIENNE BARNARD ATTORNEYS

235

Execution – Immovables Rule 46

- Creditor publish notice
  - Government Gazette
  - Newspaper in district
- Not less than 5 days
- Not more than 15 days
- Copies to Sheriff
- 20 days before sale – conditions of sale to sheriff
- Two copies

ETTIENNE BARNARD ATTORNEYS

236

Execution – Immovables Rule 46

- Form 21– conditions of sale
- It is an agreement
- Aim is to contractually bind the purchaser
- And to protect the
  - EXECUTION CREDTITOR
  - THE SHERIFF
  - THE AUCTIONEER
  - THE ATTORNEY OF THE AUCTIONEER

ETTIENNE BARNARD ATTORNEYS

29/04/2015 237

Execution – Immovables Rule 46

- The conditions will lie for inspection at the sheriff's office
- Must give to all other sheriffs in area
- Can apply to Magistrate Court to modify the conditions

ETTIENNE BARNARD ATTORNEYS

238

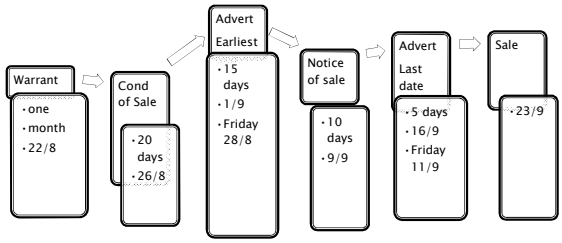
ARRANGING SALE– IMMOVABLES(12)

- NB Constantly watch the time limits
- Regular Deeds Office Searches
- Calculate Balance Owing and deliver statement to sheriff
- Attend the sale
- Appoint the conveyancer
- All days are court days

ETTIENNE BARNARD ATTORNEYS

29/04/2015 239

Execution – Immovables Rule 46



ETTIENNE BARNARD ATTORNEYS

240

Sales in Execution and CPA

ETTIENNE BARNARD

Acts, Rules and Regulations

- Sec 66, 67, 68 MCA
- Rules 39, 41, 42, 43
- Sec 36, 39,40 HCA
- Rules 45, 46
- Sec 45 CPA
- Regulations 18 to 33

ETTIENNE BARNARD

Auctioneer

- **Rule 41(8)(a) MCR – movables**
- **With approval of Magistrate an auctioneer or other person appointed by the sheriff**
- **Rule 43 (9)(a) MCR – immovables**
- **Interested party give notice to sheriff that property sold by auctioneer**
- **Rule 45 (7)(a) HCR – movables**
- **Sheriff shall sell by public auction**
- **Rule 46 (4)(a) HCR – immovables**
- **Sheriff will conduct sale, can appoint another sheriff**

ETTIENNE BARNARD

Section 45 CPA

- Auction includes a sale in execution
- Each lost is regarded as a separate transaction
- A sale is complete by the fall of the hammer or any other customary manner
- A bid may be retracted before sale is complete

ETTIENNE BARNARD

Section 45 CPA

- Notice must be given in advance if an auction is subject to:
  - A reserved or upset price
    - Third party to sell bonded property
  - A right to bid by or on behalf of the owner or auctioneer
  - **Rule 39(7) MCR and Rule 45 (13) HCR no sheriff or person obo sheriff may purchase any property at auction**

ETTIENNE BARNARD

24
5

Section 45 CPA

- If not given notice then:
  - The owner or auctioneer may not bid or appoint anybody to bid in their behalf
  - Auctioneer may not knowingly accept such a bid
  - Consumer may approach court to declare the transaction fraudulent
  - Court defined as not a consumer court

ETTIENNE BARNARD

Sec 55

- Consumer's rights to safe, good quality goods
- Sec 56 – implied warranty
- Sec 56 (2) six months
- Do not apply to goods bought at action – sec 55(1)

ETTIENNE BARNARD ATTORNEYS

Regulations of CPA – Reg 18

- Regulations apply to all auctions
- Any agreement relating to goods sold or bought at auction or agreement with regard to conduct of auction which contravenes regulations have no force and effect
- Auction selling immovable property must adhere to all applicable law including estate agents

ETTIENNE BARNARD ATTORNEYS

Regulation 19 – advertising

- No goods may sold unless advertised in way that general public can become aware of it
- **Rule 41(8)(c) MCR – If value less than R5000 do not have to advertise – execution creditor**
- **No such requirement in HCR**
- General public must
  - be aware of the auction
  - Know what goods are on offer
  - Rules governing the auction

ETTIENNE BARNARD ATTORNEYS

Regulation 19 – advertising

- Advertise at least 24 hours before auction for movables
- **Rule 41(8)(b) MCR – execution creditor must give notice of sale to sheriff 10 days before sale – one at court one at place of auction**
- **Rule 41(8)(c) MCR – must adv in local newspaper 10 days before sale**
- **Rule 45 (7)(a) HCR – execution creditor must adv in local paper 15 days before sale**
- **Rule 45(7)(c) HCR – sheriff must provide notice of sale to other sheriffs in area**

ETTIENNE BARNARD ATTORNEYS

Regulation 19 – advertising

- At least 5 days for immovables
- **Rule 43(6)(c) MCR – adv in newspaper registered with the Audit Bureau of Circulations of South Africa and Government Gazette circulating in district where immovable property is situated not less than 5 days and not more than 15 days before the date of sale**
- **Rule 46 (7)(c) HCR – the same except Audit Bureau**

ETTIENNE BARNARD ATTORNEYS

25
1

Regulation 19 – advertising

- Can withdraw goods at any time prior to start of auction
- **Rule 41(10) MCR – shall stop as soon as sufficient money has been raised to satisfy warrant**
- **Rule 45(11)(b) HCR – Surplus paid to debtor**
- If goods sold in execution – ad must state so clearly

ETTIENNE BARNARD ATTORNEYS

Regulation 20 – General Rules Ads

- Legible format and size
- Refer to website where can view regulations
- Date, place and time
- Name of auctioneer
- Where rules of auction can be obtained
- Particulars of goods offered

ETTIENNE BARNARD ATTORNEYS

Regulation 20 – General Rules Ads

- Subject to reserved or upset price
- Right to bid by or behalf owner or auctioneer
- Bidders must register
- Costs of auction
- BUT – this does not apply to roadside ads or classified ads in printed newspapers

ETTIENNE BARNARD ATTORNEYS

Regulation 20 – General Rules Ads

- May not advertise as a sale in execution unless
  - At least 75% of lots are offered as result of court order
  - The lots were not attained for purpose of resale at auction
  - Explanation of court order including identification of the court

ETTIENNE BARNARD ATTORNEYS

Regulation 20 – General Rules Ads

- Unless all lots are as result of court order ad must have words " with additions", "supplemented" or similar wording

ETTIENNE BARNARD ATTORNEYS

Regulation 20 – General Rules Ads

AUCTION IN THE HIGH COURT OF SOUTH AFRICA (KWAZULU-NATAL HIGH COURT, DURBAN) CASE NO. 11228/2012 In the matter between : ABSA BANK LIMITED PLAINTIFF and KUBARDHAREN CHINNAPEN DEFENDANT NOTICE OF SALE THE SALE BE SUBJECT TO THE TERMS AND CONDITIONS OF THE HIGH COURT ACT NUMBER 59 OF 1959 AND THE CONSUMER PROTECTION ACT NUMBER 68 OF 2008 AND THE RULES PROMULGATED THEREUNDER" A sale in Execution of the under mentioned property is to be held without reserve at THE SHERIFF'S OFFICE, INANDA 1: 18 GROOM STREET, VERULAM on 31 MAY 2013 at 10H00. Full Conditions of Sale can be inspected at the offices of the SHERIFF OF THE HIGH COURT, INANDA 1: FIRST FLOOR, 18 GROOM STREET, VERULAM, the Sheriff who will be holding the sale, and will also be read out by the Sheriff prior to the sale in execution. The Execution Creditor, Sheriff and/or Plaintiff's Attorneys do not give any warranties with regard to the description and/or improvements. A UNIT CONSISTING OF - (A)SECTION NO 9 AS SHOWN AND MORE FULLY DESCRIBED ON SECTIONAL PLAN NO. SS499/2001 IN THE SCHEME KNOWN AS SPORTPARK HEIGHTS IN RESPECT OF THE LAND AND BUILDING OR BUILDINGS SITUATE AT DURBAN, IN THE ETHEKWINI MUNICIPALITY AREA OF WHICH SECTION THE FLOOR AREA, ACCORDING TO THE SAID SECTIONAL PLAN, IS 40 (FORTY) SQUARE METRES IN EXTENT; AND (B)AN UNDIVIDED SHARE IN THE COMMON PROPERTY IN THE SCHEME APPORTIONED TO THE SAID SECTION IN ACCORDANCE WITH THE PARTICIPATION QUOTA AS ENDORSED ON THE SAID SECTIONAL PLAN. HELD BY DEED OF TRANSFER NO. ST9500/2010 (also known as: 12 SPORTPARK HEIGHTS, ASHPARK PLACE, SHASTRI PARK, PHOENIX, DURBAN, KWAZULU-NATAL) IMPROVEMENTS: (Not Guaranteed) GROUND FLOOR FLAT CONSISTING OF: BEDROOM, LOUNGE, KITCHEN, TOILET, SHOWER TAKE FURTHER NOTICE THAT: 1. This sale is a sale in execution pursuant to a judgment obtained in the above court 2. The Rules of this auction is available 24 hours prior to the auction at the office of the Inanda 1 at First Floor, 18 Groom Street, Verulam 3. Registration as a buyer is a pre-requisite subject to specific conditions, inter alia: I **Directive of the Consumer Protection Act 68 of 2008 (URL http://www.info.gov.za/view/DownloadFileAction?id=99961) I Fica - legislation i.r.o proof of identity and address particulars I** Payment of Registration deposit of R10 000.00 in cash I Registration Conditions The office of the Sheriff for Inanda 1 will conduct the sale with auctioneers T Rajkumar (Sheriff) and/or R Narayan (Deputy Sheriff) and/or M Chetty and/or Mr S Singh and/or Mrs R Pillay. Advertising costs at current publication rates and sale costs according to court rules apply. VELILE TINTO & ASSOCIATES Tinto House, Cnr Hans Strijdom & Disselboom Street, Wapadrand, DX 178, PRETORIA. TEL. NO: (012) 807 3366. FAX NO: (012) 807 5299. P O BOX 733, Wapadrand, 0050 Ref: U8049/DBS/F LOUBSER/K GREYLING/PD

ETTIENNE BARNARD ATTORNEYS

25
7

Regulation 20 – General Rules Ads



Weekend Argus Saturday/Sunday

713 Sale In Execution 713 Sale In Execution

SALE IN EXECUTION - CONSTANTIA

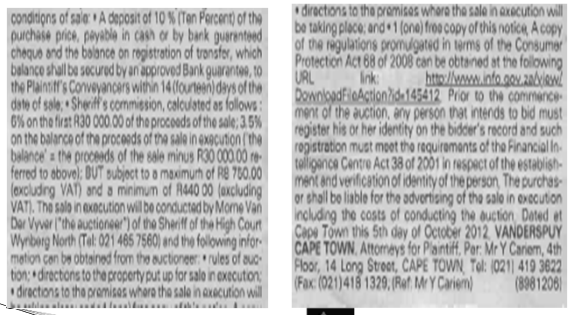
IN THE HIGH COURT OF SOUTH AFRICA, (WESTERN CAPE HIGH COURT, CAPE TOWN). Case No 2289/2012. In the matter between: NEDBANK LIMITED, Plaintiff and SALCIA (PTY) LIMITED (Registration Number: 2005/008487/07) First Defendant, CIARAN McGUCKIAN (Born on 9 April 1994) Second Defendant, SALLY ANN BROWNE McGUCKIAN (Born 19 May 1965) Third Defendant. Kindly take notice that the following property will be offered for sale in execution, by public auction, on 7 NOVEMBER 2012 AT 12H00 AT 9 MONTROSE TERRACE, CONSTANTIA, WESTERN CAPE in terms of a warrant of execution issued pursuant to a judgment granted by the abovementioned Honourable Court on 23 May 2012, and declaring the property below executable: Erf 9138 Constantia, In the City of Cape Town, Division Cape, Province of the Western Cape, In extent: 4000 (Four thousand) square metres, Held by Deed of Transfer No T89064/2006. Subject to such conditions as are mentioned



or referred to therein. With physical address: 9 Montrose Terrace, Constantia, Western Cape. Although no warranties are given, the following information is provided: • The subject property is a double storey, plastered dwelling under a tiled roof and is currently under construction. The subject property is secured with a high boundary wall. • The proposed accommodation comprises of 6 (Six) bedrooms, 4 (Four) bathrooms, 3 (Three) dressing rooms, 2 (Two) cloak rooms, 3 (Three) family rooms, 1 (One) lounge area, 1 (One) kitchen with a scullery, 1 (One) dining room, 1 (One) laundry room, 1 (One) utility room, 1 (One) study, 1 (One) bar room, 2 (Two) internal stores and a wine cellar. • There is a flatlet attached to the subject property which comprises of 2 (Two) bedrooms, 1 (One) bathroom, 1 (One) kitchen and a lounge area. • The outbuildings attached to the dwelling comprise of a pool changing room, a store with an additional wine cellar, a 3 (Three) car garage with a store room. The Conditions of Sale may be inspected at the offices of, or obtained, from: • Sheriff of the High Court, Wynberg North, Tel: (021) 465 7560 and • VanderSpuy Cape Town, 4th Floor, 14 Long Street, Cape Town, Tel: (021) 419 3622. The following

ETTIENNE BARNARD ATTORNEYS

Regulation 20 – General Rules Ads



conditions of sale: • A deposit of 10 % (Ten Percent) of the purchase price, payable in cash or by bank guaranteed cheque and the balance on registration of transfer, which balance shall be secured by an approved Bank guarantee, to the Plaintiff's Conveyancers within 14 (fourteen) days of the date of sale; • Sheriff's commission, calculated as follows : 6% on the first R30 000.00 of the proceeds of the sale; 3.5% on the balance of the proceeds of the sale in execution ('the balance' = the proceeds of the sale minus R30 000.00 referred to above): BUT subject to a maximum of R8 750.00 (excluding VAT) and a minimum of R440.00 (excluding VAT). The sale in execution will be conducted by Morne Van Der Vyver ("the auctioneer") of the Sheriff of the High Court Wynberg North (Tel: 021 465 7560) and the following information can be obtained from the auctioneer: • rules of auction; • directions to the property put up for sale in execution; • directions to the premises where the sale in execution will be taking place; and • 1 (one) free copy of this notice. A copy of the regulations promulgated in terms of the Consumer Protection Act 68 of 2008 can be obtained at the following URL link: http://www.info.gov.za/view/DownloadFileAction?id=145412. Prior to the commencement of the auction, any person that intends to bid must register his or her identity on the bidder's record and such registration must meet the requirements of the Financial Intelligence Centre Act 38 of 2001 in respect of the establishment and verification of identity of the person. The purchaser shall be liable for the advertising of the sale in execution including the costs of conducting the auction. Dated at Cape Town this 5th day of October 2012. **VANDERSPUY CAPE TOWN.** Attorneys for Plaintiff. Per: Mr Y Cariem, 4th Floor, 14 Long Street, CAPE TOWN. Tel: (021) 419 3622 (Fax: (021)418 1329. (Ref: Mr Y Cariem) (8981206)

ETTIENNE BARNARD ATTORNEYS

Notice of Sale – Movable

- Rule 41(8)(b) MCR
  - Court and case no
  - Execution Creditor and debtor
  - Place of auction
  - Date and time of auction
  - List of items to be sold
- Rule 45 (7)(c) HCR
- Sheriff must forward to other sheriff in region

ETTIENNE BARNARD ATTORNEYS

Notice of Sale – Immovable property

- Rule 43(6)(b) MCR
  - Short description of property
  - Address of property
  - Date, time and place of the auction
  - Material conditions thereof

ETTIENNE BARNARD ATTORNEYS

Notice of Sale – Immovable property

- A notice of sale which contains no more than the technical designation of the land, as described in the title deed, is inadequate.
- the description must deal with the main characteristics of the property
- are there any improvements or buildings on the land
- the town planning zone of the property
- special privileges or exemptions in respect of the property in terms of the relevant town planning scheme.

ETTIENNE BARNARD ATTORNEYS

26
2

Notice of Sale – Immovable property

- If the notice of sale is inadequate, the sale in execution of the property can be set aside at the instance of an interested party.
- Section 70 of the MC Act provides that a sale in execution of movable property after delivery or immovable property shall not, after registration of transfer, be liable to be impeached as against a purchaser in good faith and without notice of any defect.

ETTIENNE BARNARD ATTORNEYS

Notice of Sale – Immovable property

- If the sale is, however, null and void because it violates the principle of legality, the sheriff can have no authority to transfer ownership of the property and the purchaser will not acquire ownership despite registration of the property in his name.
- Markom v Menqa
- Absa Bank v Van Eeden & others 2011 (4) SA 430 (GSJ)
  - Sec 70 discussion
  - Sale of motor vehicles the sheriff must give notice of the sale to the title holder and owner

ETTIENNE BARNARD ATTORNEYS

Notice of Sale – Immovable property

- **Rule 46 (7)(c) – HCR**
- **short description of the property,**
- **its situation and**
- **street number,**
- **the time and place for the holding of the sale**
- **the fact that the conditions may be inspected at the office of the sheriff conducting the sale**

ETTIENNE BARNARD ATTORNEYS

26
5

Regulation 21 – Rules

- Rules must be done in writing
- Available at least 24 hours prior to the auctions
- On first page in large letters words "rules of auction"
- Date, place and time of auction
- Full name, physical address and contact details of auctioneer
- Breakdown of total costs of advert and auction and any additional costs
- Regulation 21(2)

ETTIENNE BARNARD ATTORNEYS

Conditions of Sale

- **Rule 43(7) MCR**
- **Execution creditor prepare conditions of sale**
- **Payment of interest by purchaser**
- **Not less than 20 days before date of sale**
- **Rule 46(8)(a) HCR**
- **Execution creditor prepare conditions of sale**
- **Not less than 20 days before date of sale**
- **Must conform with Form 21**

ETTIENNE BARNARD ATTORNEYS

Regulation 21 – Rules

- Rules may:
  - not exclude liability in respect of inaccurate information
  - not exclude liability in respect of the rules of auction not meeting the requirements of these regulations
  - contain any qualification, reservation or diminution of the requirements of the regulations
  - Not exclude the right of inspection

ETTIENNE BARNARD ATTORNEYS

Regulation 21 – Rules

- Must be signed by auctioneer who is going to conduct the auction and certify that complies with Reg 21
- Auctioneer is personally accountable and liable for the rules
- Rules need not be read at auction

ETTIENNE BARNARD ATTORNEYS

Prohibited behaviour – Reg 24

- An Auctioneer may not:
  - Receive commission for movable goods unless it was delivered to the purchaser
  - Receive commission for immovable goods until purchaser and seller have signed agreement
  - Receive commission where the purchaser or the seller defaults

ETTIENNE BARNARD ATTORNEYS

Bidder's Record – Reg 26

- For every auction there must be a bidders' record
- Info must adhere to Fica
- Letter of authority
- Resolution
- Record is open for public inspection before, after and during auction

Bidding – Reg 28

- Bidder number and paddle or other device
- Place of auction must be open and accessible
- Must have vendor's roll which all details of auction are recorded – see list in reg 28(4)
- Must have reasonable period to inspect goods
- No fee charged for participation but may have refundable deposits
- At end of auction
  - Must announce auction is finished
  - Sign vendor's roll
  - Certify that auction was done in accordance with the reg

Records – Reg 31

- Records must be kept for a period of at least three years

Execution – immovable

- JAPHTA v SCHOEMAN & OTHERS 2005 (2) SA 140 (CC)
- Standard Bank v Saunderson 2006 (2) SA 264 (SCA)
- Elsie Gundwana v Steko Development CC and others [2011] SACC 14
- Mkhize v Umvoti Municipality and others 2012 (1) SA 509 (SCA) – Judicial oversight also required when property is not debtor's home

Execution – immovable

- Nedbank v Fraser & others 2011(4) SA 363 GSJ
- First Rand v Folscher 2011(4) SA 314 (GNP)
- Standard Bank v Bekker 2011(6) SA 111 (WCC)
- Standard Bank v Dawood 15438/11 WCC 9/5/12
- Knox v Mofokeng 33437/2011 SGJ 30/1/12
- Nedbank v Trustees for the Time being of the Prite Trust 2012 JDR 2103 (GNP) – trust protected

- Slides at
- www.Barnards.co.za